

Court No. - 3

Case :- WRIT - C No. - 22225 of 2022

Petitioner :- Jai Prakash Varma @ Rinku Singh

Respondent :- State Of U P And 3 Others

Counsel for Petitioner :- Rakesh Kumar Tripathi, Anupama Tripathi

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

1. Heard learned counsel for the petitioner, learned Standing Counsel for the State-respondents and Shri Udit Chandra, learned counsel for the respondent nos. 2 and 3.

2. This writ petition has been filed praying for the following reliefs :

"(I) A writ writ, order or direction in nature of certiorari quashing the order dated 20-02-2021 issued by respondent No. 2 Executive Engineer Purvanchal Vidyut Vitran Limited, Electricity Distribution Division-II, District- Varanasi to Tehsildar Tehsil- Pindra to Recover Rs. 7,08,521/- (Rs. Seven Lakh eight thousand five hundred twenty one) from petitioner. (Annexure No. 1 this writ petition).

(II) A writ writ, order or direction in nature of certiorari quashing the order dated 21.06.2019 issued by respondent No. 3 for the recovery of Rs. 7,08,521/-. (Annexure No. 4 to this writ petition)."

3. Learned counsel for the respondent nos. 2 and 3/Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

4. In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this writ petition is **disposed of** giving liberty to the petitioner to submit his objection under Para 6.8 of U.P. Electricity Supply Code, 2005 before the respondent no.3 within four weeks from today alongwith a certified copy of this order. In the event, such an objection is submitted within the stipulated period, it shall be decided by the respondent no.3 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

5. For a period of eight weeks or till the disposal of the objection of the petitioner, whichever is earlier, no coercive

action shall be taken against the petitioner in pursuance of the impugned demand/notice.

Order Date :- 5.8.2022

A. V. Singh